

Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE 8.15

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify) _____

Type of proceedings:

- ☒ Family law proceedings
☐ Other (specify) _____

Filed on behalf of:Full name: Stephen Christopher Cooke**COURT USE ONLY**

Client ID _____

File number _____

Filed at NEWCASTLE

Filed on _____

Court location _____

Court date _____

Name of person swearing this affidavit:Stephen Christopher CookeDate of swearing 5/12/2023

Part A About the parties

APPLICANT 1

Family name (as used now)

Cooke

Given names (as required)

Stephen Christopher**RESPONDENT 1**

Family name (as used now)

Cooke

Given names (as required)

Heather Anne

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You **must** also give an email address.

Clarity Lawyers45 Hunter Street, NewcastleState NSWPostcode 2300Phone (02) 4023 5553Lawyer's code CLA7584701Email samantha@claritylawyers.com.au

Part B **About the independent children's lawyer (if appointed)**

Independent children's lawyer family name

Given names

Firm name

Part C **About you (the deponent)**

Family name (as used now)

Given names

Cooke

Stephen Christopher

Gender



Male



Female



X

Usual occupation (if applicable)

Parent and Homemaker

What is your address?

You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

213 Morgan Street

Merewether

State NSW

Postcode 2291

Part D **Evidence**

I, Stephen Christopher Cooke, of 213 Morgan Street, Merewether NSW 2291, Parent and Homemaker, make oath and say/affirm:

Background

1. I am the Applicant Father in these proceedings.
2. I was born on 27 October 1981, and I am currently 42 years of age.
3. Heather Anne Cooke ("**Heather**") is the Respondent Mother in these proceedings.
4. Heather was born on 31 July 1978 and is currently 45 years of age.
5. Heather and I began living together on 24 September 2011 and were married on 26 September 2012.
6. There are two (2) children to the relationship, namely:
 - a. Christian Finn Cooke, born 20 August 2014 and currently 9 years of age ("**Christian**"); and
 - b. Joshua Finn Cooke, born 27 January 2017 and currently 6 years of age ("**Joshua**")

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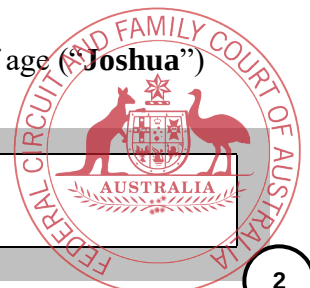
Stephen Christopher Cooke

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(Collectively referred to as “**the children**”).

7. Heather and I separated on a final basis on 17 November 2023.

Parenting During the Relationship

8. Christian was born on 20 August 2014. I was working at this time and Heather had short maternity leave for less than 3 months. A nanny then cared for Chrisitan for 9 months.
9. In September 2015, we moved to Australia from Canada as a family. I assumed the role as primary homemaker and parent and Heather returned to work full-time.
10. In January 2017, Joshua was born. Heather was home for several weeks after giving birth, but I remained the primary carer during this time.
11. For the duration of the relationship, I was the primary homemaker and parent whilst Heather worked full-time to support the family financially. I managed tasks like cooking, cleaning, and washing, although the latter posed some challenges. Heather had a specific way of washing clothes in the machine, and she insisted that it was the only proper method for doing so, along with other associated domestic duties.
12. In the mornings, I would prepare breakfast, set the children up for homework, make lunches and clean the kitchen, prepare the children’s uniforms, brush their teeth, trim their nails once per week, bath them, managed and provided the children with their medications, pack their bags and walk the children to school, put them to bed, read to them.
13. During school hours I shopped for the groceries, cleaned the house, take the kids to doctor appointments, made the beds, picked up medications, ran errands for Heather, vacuumed, tended to the lawns and hedged for 3 hours a week and all completed other home maintenance tasks as required. On weekends, I would often take the children bike riding, inline skating, scooting and we would also play with Lego and video games.
14. I observed that during our relationship, Heather would struggle to deal with the children in the evenings and on the weekends. On weekends, Heather is often tired and/or hung over and she stays in bed for extended periods.
15. Heather would often complain that she was tired whenever the children were not listening to her or complying with her demands. Heather would then place responsibility on me to look after the children when she wasn’t coping and would simply walk upstairs to her bedroom and shut the door.
16. I often felt like a slave to Heather which made me feel inferior. She would often make me fetch her drinks and snacks.

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17. In June 2023, Heather said to the children, words to the effect of: *"Daddy doesn't love you."*. She also said to me *"I'll have to speak to my accountants and organise buying you out"*.
18. On 25 June 2023, Heather announced in front of the children, words to the effect of: *"guys, go get your shoes on, we have to leave."* Christian questioned Heather as to why they had to leave and Heather replied with, words to the effect of: *"If we don't leave, I may end up stabbing your dad."* I asked Heather where she was taking the children and she ignored me and proceeded to drive away. 10 hours later, I decided to drive 45 minutes to Heather's mums' home in the hope of finding them there. As I was driving, I received a call from Christian who told me that he was *ok* and that he had cried the entire car ride and was screaming, words to the effect of: *"Mum take me back, I want dad."*
19. On 26 June 2023, Heather dropped the children home at 8:00am for school at 9:00am. Heather left and did not explain what took place the day prior. I rushed to get the children ready as we only had an hour. Both boys were very happy to see me and I was very relieved. Christian said, *"I hate mum for doing this."*
20. Following this event Christian developed what I believe to be "Separation Anxiety". Saying "goodbyes" became increasingly challenging for Christian. Christian was no longer able to say goodbye and simply break like before. For example, even now, at school drop off, after saying my goodbye, as I walk away, Christian will continually repeat (yelling if from afar), *I love you Dad, bet I love you more than me!* The latter bit of that statement made me feel terrible. In most instances when Christian has made that later comment, I have returned to Christian to say, *"Buddy I will always love you and I love you more than anything in the world."*
21. I later discussed this with Heather, that I believe this incident may have caused Christian to develop separation anxiety to which she responded, *"oh, so now its my fault"*. When next I met with Christians' Paediatrician I explained to him what was happening in Christians life. That I suspected Christian may have developed separation anxiety from this event. Christians Paediatrician directed me back to Kane Becker, Child Psychologist. where I arranged 6 appointments to work through this issue with Christian. Since our visits together I'm happy to report that we have seen improvement.
22. In or around June 2023, Heather said to me, words to the effect of: *"you are solely responsible for Christian's obesity"* and *"you never take ownership."* However, I believe the children are eating well and that I'm doing my best as a Father. I always include fresh vegetables when I make the children's dinner each night. Shortly after this incident with Heather, I purchased a digital smart scale to monitor the children's weight. Christian weighs about 32kg which is not considered obese for his age and height.

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23. On another occasion in around June the boys were being boisterous in our bedroom. In an effort to take control of their behaviour Heather said *"if you boys do not stop Mum and Dad are going to get a divorce!"*. This comment shocked me and I told her she can't talk to the boys like that. Heather dismissed my concerns.
24. On the evening of 11 September 2023, upon returning home from Hockey with Joshua, I saw that Heather had dinner without me and appeared to be upset. She then asked with an angry tone *"What did you do all day?"* I said, *"I folded and put the laundry away, made the beds, pulled the weeds in the front yard, cleaned, and put the dishes away. I also attempted to make breakfast for you this morning."* I then asked, *"why were you late in getting home for Joshua Hockey?"* Heather replied, *"it only takes 10 minutes to drive to Hockey."* I said, *"not this time a day, we were 8 mins late getting on the ice."* Later in the bedroom she said in an angry tone *"you live a pretty privileged life"*
25. On the morning of 12 September 2023, Heather would not get out of bed. I offered to make her a coffee and attempted to discuss Christian's homework commitments. Heather then said, words to the effect of: *"go away, go away and back off, you live a privileged life!"*

Parenting Post-Separation

26. In the week following separation on 17 November 2023, I approached Heather in Joshua's bedroom in an effort to have her reconsider separation for the sake of the children. I expressed my desire to Heather to fix the relationship by attending marriage counselling and by finding ways to handle the financial issues that we were facing. Heather responded with, words to the effect of: *"I am exceptional, don't I deserve to be with someone who is equally exceptional?"*
27. I have always primarily completed the household duties as detailed in this Affidavit. However, in the last week or so, Heather declared herself the primary carer, and started to take more of an active homemaker role and has completed a few grocery shops. I have observed however, despite completing the shop herself, as this role is new to her we had very little groceries available to pack for the school lunches.
28. In or around June/July this year (prior to our separation), Heather suggested that the children be separated from one another and that she takes Joshua with her and that I take Christian. I suspect she proposed this arrangement because she appears to be overwhelmed at times with their boisterous nature. Christian in particular can be quite difficult to manage. I responded, *"you can't separate the kids, they're brothers. And what about me, wouldn't you miss me?"* Heather paused for a moment before saying *"Yes, but we need to do what is in the best interest of the kids."* Then I said *"what is in the best interest for the kids is to keep the kids together,"*

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they are brothers. We need to keep the family together.” Heather said “well, I think it is still worth considering as an option” It was at that point I left the room feeling very confused about what Heather had just suggested.

29. Heather has also discussed future parenting arrangements with the children in the absence of any agreement between us. On November 28th at 7:00pm while watching TV in our Master Bedroom, Christian said, words to the effect of: *“I heard Granny and Mum talking today saying that they need a TV, they’re going to take this TV Dad. Dad, you’ll need another TV”*
30. Chrisitan appeared distressed and adversely affected by the separation.
31. On Sunday November 19th. Heather insisted we all needed to go to Telstra Katora Mall to separate the phone bill. As a family we went. Both kids seemed fine. 10 Minutes in, Christian looked like he needed to sit down. I told Heather I was going to find the nearest public sitting area and wait with the kids. Christian looked lethargic and was moaning. I said, *“hey buddy, you feeling okay?”* Christian said *“I don’t know”* I said, *“do you feel sick”* Christian *“Kind of”* I said okay, why don’t we wait in the car and Joshua, are you okay to stay with mum? *“Yes”* so I left Joshua in the care of Heather and took Christian to the car. When we arrived, we watched some funny animal videos together on TikTok which seemed to help. Then during one of the videos, my sister video called to check in on me, I answered the call. Angela, my sister did a fine job of cheering Christian up but when Angela asked why he was at the mall, he hesitated and said, *“I don’t want to talk about it, it makes me sad.”*
32. I recently asked Heather where she intended to move, and she refused to divulge that information. Heather responded with, words to the effect of: *“It doesn’t matter.”* I also expressed my concern that Heather works long hours and that she’s rarely home in time to pick the children up from school. I have also formed the view that Heather may be residing with another man who she is in a relationship with. Heather responded with, words to the effect of: *“me possibly having an affair is not important”* and *“It’s none of your business who I decide to have a relationship with...”* I am not comfortable with the children being in the care of a stranger in the likely circumstances that Heather is unable to look after the children whilst she is working long hours.
33. Heather often controls who I see and when I see them. On 17 November 2023, Heather organized a play date for Chrisitan without consulting me first despite the fact she had arranged for me to be the facilitator. I received a message from a close friend saying: *“I think the girls organized a play date with Lucas at yours at 10 tomorrow. Just checking if it is still good?”* I responded and said: *“Sorry Dan. Not a good weekend for me. Heather’s a go though”*

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34. I feel isolated and have no friends outside of my relationship with Heather. Most of my extended family reside in Canada.
35. On 27 November 2023, I was assisting the children with putting on their school shoes when I heard Christian teasing Joshua with words to the effect of: *"mum told me last night that she loves me more than you Joshua"* to which Joshua replied with words to the effect of: *"well mum says she only loves you Christian when you do your homework."* This conversation between the children did not take me by surprise as I have witnessed Heather, on more than one occasion, tell the children that she doesn't love them anymore when they are being disobedient. I have also witnessed Heather dismiss Christian and ban him from our bedroom, saying words to the effect of: *"I do not love you anymore, you sleep on your own tonight."* I stayed in Christian's bed and provided him with comfort when this happened.

Issues of Risk

36. On 6 September 2023, Heather was putting the children to bed when I heard Christian scream and then yell words to the effect of: *"You hit me, I'm bleeding and I can taste blood."* I immediately rushed upstairs and consoled Christian who confirmed mom had slapped him. I later questioned Heather about what had happened to which she simply stated that she wanted a divorce. She did not speak about the incident.
37. On 18 November 2023, Heather appeared to have lost her temper and I witnessed her strike Christian across the face whilst we were watching a movie as a family. I raised these concerns with our family doctor but did not go into specifics as I did not want to make things worse.
38. I have observed Heather consuming alcohol in excess most days during the relationship. Heather consumes one sometimes two bottles of wine most nights. On nights in which she has been drinking, Heather can become quite mean and insensitive to both myself and the children. The nights in which Christian has been typically slapped on the face occur because I believe she is mentally and physically exhausted from work and drinking is a factor.

Circumstances of Urgency and Best Interests of the Children

39. On 24 November 2023, I instructed my solicitors to write to Heather, requesting a response within seven (7) days. **Annexed hereto and marked "A" is a copy of this letter.** This letter set out my proposal for the care of the children and invited Heather to respond or in the alternative attend mediation to discuss the issue.
40. On Friday, 1 December 2023 at 4:58pm, my solicitor received a response from a solicitor instructed by Heather. **Annexed hereto and marked "B" is a copy of the letter in response**

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from Heather's solicitor. I believe the timing of the letter in response was strategic on Heather's behalf and contributed to what occurred over the weekend of 2 and 3 December 2023.

41. On the morning of 2 December 2023, the children and I were setting up and decorating the Christmas tree. I briefly left home to go to the pharmacy. As I returned home, I observed bags and boxes of personal belongings being packed by Heather and then being placed into 5 vehicles, in attendance were Heather's sister (Carol Kelly-Finn), her sister's boyfriend (Adam Potts) and another person unknown to me. Heather took many expensive items from the home without consulting me or allowing the chance for us to reach agreement as to the division of chattels. **Annexed hereto and marked "C" is a photograph I took on this day.**
42. I sent a message to Heather clearly stating I did not consent to the children leaving and that I would bring an urgent recovery application.
43. Upon moving out, Heather left a pregnancy test kit on our bathroom floor. I observed that 2 of 3 tests from the kit were missing. We have not had sex in 8 months. I believe that Heather deliberately left this kit in our bathroom floor to taunt me and perhaps provoke me to an emotional response which she could use against me. **Annexed hereto and marked "D" is a photograph of this test kit on the bathroom floor.**
44. As Heather was vacating the home, I telephoned the police. I was worried about the safety of the children leaving the home in the context of risk issues and Heather physically assaulting Chrisitan in the recent past. The police turned up and said that Heather was allowed to leave, they did not address the issue of the safety of the children. The provided me with information about family violence including financial abuse.
45. Heather still has not told me where she is currently residing. I hold strong concerns about the safety and well-being of the children who have been removed from their home and placed in an unfamiliar environment, potentially residing with a male figure unknown to them.
46. I was relieved to receive a phone call from Joshua at bedtime last night (4 Dec) during which it was clear that he had attended school that day. Concerningly Joshua said to me *"why did you steal 8,000.00 from mom? Why did you call the police to try and prevent mum from leaving?"*. My response was simply *"sorry buddy, that's not something I can discuss with you"*. In hindsight it may not have been the best idea for me to call the police however I was more stressed than I have ever been in my life and very concerned. I was unable to speak to my solicitor as it was the weekend and didn't know who else to call.
47. I believe it is in the best interests of the children to remain living in the former matrimonial home with me as I have always been their main caregiver. They have a consistent routine and

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structure and I do not think it is in their best interests to be living with Heather who works long hours and does not cope well with the children, particularly Christian.

Property

48. I remain entirely dependent on Heather for financial support. In 2022, Heather earned a taxable income of \$477,857 per annum. I am yet to receive financial disclosure of her current taxable income though projections I have seen place it at significantly higher than last year.
49. Heather controlled and made all decisions regarding the finances during the relationship. I had access to a credit card which I used to make purchases to support the household. Larger purchases were always monitored and discussed between Heather and I.
50. Heather discouraged me from working unless I was able to earn at least \$140,000 per annum. Heather claimed this was because of a tax issue and that she would also have to pay a nanny or third-party to do the tasks that I was doing. Therefore, I did not work because I had no capacity to earn an income anywhere near that vicinity and the household was dependent on me as the homemaker.
51. Now that Heather has left the former matrimonial home, I have no means of supporting myself in the short term. Heather has refused my request for financial support and her lawyer suggests that I simply obtain employment. I have not been in the workforce for 8 years and would require training and further education to earn an income sufficient to meet my outgoings. I also plan to continue in my role as primary carer of the children whilst they live with me which will impact my employment prospects.
52. In the weeks leading up to separation Heather had been pressuring me to sign documents which I believe saw our home further encumbered and I was uncomfortable with that given how our relationship was.
53. Heather meets with professionals (accountants and brokers) and makes unilateral decisions about finances and then has me sign forms or documents without explaining things to me properly. Since the weekend I have found that the property was refinanced in June to release significant funds.
54. On Friday, November 3rd I attended a zoom meeting at Heather's office with both Heather and Darole Evans, Mortgage Broker – Walshs. During this conference call, I learned that there had been more discussions about buying into the medical practice Heather works for. I was not previously privy to these discussions, despite me recently asking her at home about it and being told that there were no new developments. During the call, Darole hinted that this buy-in might

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involve a substantial cost. When I later asked Heather about it after the call, she suggested around \$500,000.

55. What struck me the most though during the call, was the revelation that Heather would be the exclusive owner of the new investment property. This, I was told, was due to being able to secure a favourable tax break. This was particularly surprising because up until this point, we had always maintained a 50/50 partnership in all our investments.
56. Later that evening, I shared my concerns regarding securing a substantial loan in which I had no interest. I also brought up her previous desire to leave the marriage only expressed a few months ago. She reassured me that this arrangement was in our best interest and continued to say, *"in the event of a divorce, this would actually simplify matters—I would retain the buy-in into the practice and the investment property, while you would keep the house."*
57. I conveyed my reluctance toward this proposed arrangement then reaffirm my commitment to making our relationship work, I emphasized that I did not want a divorce. And I doubted whether this plan of Heather's truly had my best interests in mind.
58. As I prepared dinner in the kitchen for the kids moments later, Heather joined us reiterating her optimism about our future together, repeating twice, "I believe we will be together for a very long time."
59. On 7 November 2023, I sent an email to Heather and the accountants advising of my decision to decline signing a document that was to be sent to Westpac Bank. It was my understanding that this document titled *"Game Plan"* would have pledged all out joint assets and securities, including the former matrimonial home, to Westpac Bank as security to issue a \$950,000 loan to Heather. When Heather returned home that evening from work, she greeted me with an icy stare, and she chose not to engage in conversation with me. Heather slept on the floor of Joshua's bedroom that night.
60. On 8 November 2023, Heather sent me a text message as follows: *"If I can't use the equity in the house for an investment property, can I use the equity in the house to buy into the business? I'm going to need a sizeable personal loan."* In response, I said: *"Seriously cannot expect us to discuss this over a text message. We'll have to make time for a proper conversation when the kids are not around, preferably when they are at school."* Heather then responded: *"Not really, it's pretty simple. Can I use the equity in the house to buy a proven and profitable business? The risks aren't the same as an investment property."* **Annexed hereto and marked "E" is a copy of these text messages.**
61. Heather pressures me and coerces me into doing things and claims the money is hers, and assures me that its fair and in my best interest. I haven't had the capacity to say "No" before

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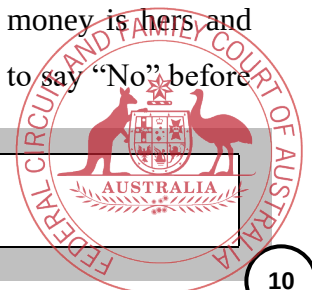
Stephen Christopher Cooke

Signature of person making this affidavit (deponent)

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Signature of witness



these November meetings where everything decided seemed to be very one sided. It was a high pressure situation and I was punished for my refusal to sign.

62. Heather has made investments in my name, only since the separation have I been able to access the account, which I don't understand and the value differs significantly from the value on the document I was given with the broker. Heather treats me as an employee she can dispose of or fire. She believes all of the assets of the marriage are solely hers and fails to recognize my contribution. Heather makes all the decisions about our lifestyle, if and when I can return to Canada, where we live, and how household income is spent.
63. On 17 November 2023, Heather unilaterally removed the following sums from our joint accounts and has not provided disclosure of the whereabouts of these sums other than her solicitor indicating that they are in 'safekeeping:'
- a. \$29,750 from the account ending #2594;
 - b. \$173,000 from the account ending #5063; and
 - c. \$166,037 from the account ending #7778.
64. When Heather left the home on Saturday, she took all valuable items and where there where duplicates, she took the better. I asked her if she could take an alternative coffee machine (we had two) and her response was *"I paid for everything in this house so I get to choose and you don't"*.
65. I seek that this Honourable Court make the interim orders as sought in my Initiating Application, being that the above sums be returned to the accounts that they were removed from, that Heather continue to meet all outgoings associated with the home and my car and pay spousal maintenance to me. I further seek the release of \$50,000 to my solicitors trust account to assist in the payment of my legal fees.

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Stephen Christopher Cooke

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Prue Erin Garvin

Signature of witness
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Part E Signature

I swear the contents of this affidavit are true

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Signature of Deponent

Place Merewether Date 5/12/2023

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Before me (signature of witness)

Prue Erin Garvin (JP 192672)
Full name of witness (please print)

- ☒ Justice of the Peace
☐ Notary public
☐ Lawyer
☐ Other authorised person (specify)

* delete whichever is inapplicable

*This document was signed and witnessed over audio visual link
in accordance with section 14G of the Electronic Transactions
Act 2000.*

This affidavit was prepared / settled by ☐ deponent/s
☒ lawyer

Samantha Jane Miller

CLA7584701

PRINT NAME AND LAWYER'S CODE



IN THE
No.

IN THE MATTER OF

Stephen Christopher Cooke
Applicant

and
Heather Anne Cooke
Respondent

ANNEXURE SHEET

This is the document referred to as Annexure A the affidavit of Stephen Christopher Cooke, affirmed at Merewether on 5 December 2023.

Before me:

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Prue Erin Garvin

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Prue Erin Garvin
Justice of the Peace 192672





Our Ref: SJM:EP:2023:520

24 November 2023

Ms H A Cooke
213 Morgan Street
MEREWETHER NSW 2291

By Email Only: heather111finn@gmail.com

URGENT

Dear Ms Cooke,

Re: Cooke & Cooke - Family Law Matter

We act on behalf of Stephen Cooke in relation to his family law parenting and property matter.

We understand that you have also engaged a lawyer and if that is the case, we ask that you provide them with a copy of this letter and have them contact us.

At the outset, we note that our client is hopeful that this matter can be resolved by way of amicable negotiation, without the need for the stress, delay and added costs of litigation.

Background

We are instructed as to the background of this matter as follows:

1. You commenced cohabitation on 24 September 2011;
2. You were married on 26 September 2014;
3. There are two (2) children of the relationship, namely Christian Finn Cooke, born 20 August 2014 who is currently 9 years of age and Joshua Finn Cooke, born 27 January 2017 who is currently 6 years of age; and
4. You separated on a final basis on 17 November 2023.

Level 4, Suite 4A, T&G Building, 45 Hunter Street, Newcastle NSW 2300
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Parenting

We are instructed that you and our client continue to reside under the same roof in the former matrimonial home located at Unit 1/213 Morgan Street, Merewether NSW 2291. However, we are further instructed that these current living arrangements are unsustainable.

In addition to the unsustainable living arrangements, our client maintains concerns that you are discussing future parenting arrangements with the children, in the absence of any agreement in relation to same. In particular, we are instructed that Christian appears to be distressed and adversely affected by the exposure to conflict. We ask that you refrain from having any further discussions with the children regarding parenting arrangements.

Moving forward, our client wishes to ensure stability and consistency for the children and thus proposes to remain living in the Merewether property with the children and continue in his role as the primary carer. We are instructed that you plan to obtain alternative accommodation in the interim.

Upon you residing elsewhere, our client proposes that on an interim basis, the children spend each weekend with you, from the conclusion of school on Friday (or 3:20pm on a non-school day) until 12:00pm on Sunday and for two (2) hours each week on Wednesday night from 5:00pm until 7:00pm.

If the above is not agreed, our client welcomes any counter-proposal you may have in that regard. In the event that no agreement is reached following initial negotiations, we propose that you both attend mediation.

Property

Pursuant to Rule 6.06 of the *Federal Circuit and Family Court of Australia (Family Law) Rules 2021*, each party is required to make full and frank disclosure of their financial circumstances. Therefore, we ask that you provide us with your disclosure in accordance with the **enclosed** document entitled: *'Disclosure Documents List.'*

We are instructed that you have unilaterally removed the following sums of money on 17 November 2023:

1. \$29,750 from account ending #2594;
2. \$173,000 from account ending #5063; and
3. \$166,037 from account ending #7778.

Please note that the assets, liabilities and superannuation of both parties are subject to division in this matter, irrespective of legal ownership.

In light of the above, we ask that you confirm, in writing, the whereabouts of the above money and that it will be placed into your lawyer's trust account pending final resolution of the property matter as a matter of urgency.



In the event that we do not receive confirmation in writing that the funds are placed in your lawyer's trust account within seven (7) days, then our client reserves his right to file an Application in the Federal Circuit and Family Court without further notice to you and will be seeking urgent injunctive orders restraining you from dealing with the assets of the property pool. If necessary, our client will also seek that you pay his legal fees associated with the Application. We sincerely hope this course will not be necessary.

Spousal Maintenance and Interim Distribution of Funds

We are instructed that you and our client recently conversed regarding financial support, in circumstances where our client is unemployed and where you are in receipt of a full-time salary. An agreement was reached with a view to our client achieving a level of financial stability post-separation on the terms that that you are to pay our client periodic spousal maintenance of \$5,000 per month and that you would be paying for all utilities, mortgages, and associated property expenses for a period of 12 months.

Lastly, we ask whether you would also be agreeable to an interim distribution of funds to our client by way of partial property settlement in the sum of \$25,000? This will assist our client in the payment of his legal fees and will be accounted for in any future property settlement.

We look forward to hearing from you or your legal representative within seven (7) days.

Yours faithfully,



Samantha Miller

Director and Principal Solicitor

Clarity Lawyers

BSc LLB Dip. Leg. Prac

LLM (Applied Law) Majoring in Family Law

email: samantha@claritylawyers.com.au

Encl.



IN THE
No.

IN THE MATTER OF

Stephen Christopher Cooke
Applicant

and
Heather Anne Cooke
Respondent

ANNEXURE SHEET

This is the document referred to as Annexure B in the affidavit of
Stephen Christopher Cooke, affirmed at Merewether on 5 December
2023.

Before me:

DocuSigned by:

Prue Erin Garvin

282FEC688E2A48B.....

Prue Erin Garvin
Justice of the Peace 192672





DELANEY ROBERTS

SPECIALIST FAMILY LAWYERS

Our Ref: ALR:ALR:13629
Your Ref: Samantha Miller

1 December 2023

Clarity Lawyers
T&G Building
Level 4, Suite 4A 45 Hunter Street
NEWCASTLE NSW 2300

By Email Only: samantha@claritylawyers.com.au

Dear Colleagues

**Re: Cooke & Cooke
Property & Parenting**

We refer to the above matter and advise that we act for Dr Heather Anne Cooke.

We have to hand a copy of your letter dated 24 November 2023 and note that you act for Mr Stephen Cooke.

We are instructed to respond as follows:

1. Cohabitation occurred in May 2012, rather than on 24 September 2011.
2. Marriage occurred on 26 September 2012, rather than on 26 September 2014.
3. Our client has not had any discussions with the children regarding future parenting arrangements. Our client's discussions with the children have been limited to informing them of the separation, including that they will be living with each parent in separate houses.
4. Our client believes that Christian's distress instead relates to multiple visible episodes of your client crying and his repeated statements that he will have nowhere to live and will be left destitute, all of which have occurred in the presence of the children. He has also told the children that our client has taken "*all the money*".
5. Our client requests that your client refrain from any further emotional outbursts in the presence of the children and that any discussions regarding the issues arising from separation are raised directly with our client or via respective solicitors.
6. Our client rejects the proposition that your client is the children's primary carer. Christian (9 years) and Finn (6 years) both attend school and have limited need for

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MEMBER OF
THE LAW SOCIETY
OF NEW SOUTH WALES



care during the day. Our client manages all issues around the children's needs, including arranging medical and psych appointments, school enrolments, additional learning assistance at school and so on.

7. Whilst our client acknowledges that your client assists with the children, such as to drive them to and from appointments after school, he is unable to look after these tasks without constant direction from our client. Our client is of the view that your client does not have the capacity to independently care for the children for more than one or two days at a time.
8. As such, our client proposes that the children spend time with your client every second weekend from school pick up at 3:25pm to Sunday at 12:00pm. If your client persists with his view that the children should live with him, our client is willing to attend a Mediation to further discuss parenting arrangements.

Property

9. Our client removed the funds on 17 November 2023 in order to protect these funds from your client's excessive spending habits. The funds withdrawn from account ending #7778 are business funds that are used to offset interest on the parties' home loan. The funds from accounts ending #2594 and #5063 are being held in safekeeping. The account details and balances will be disclosed in the course of our client's compliance with her financial disclosure obligations.
10. Our client is not agreeable to depositing any funds into our trust account given that it is a non-interest bearing account. Further, the funds are required for business purposes and to offset the interest on the home loan. It is therefore impracticable for the funds to be moved into our trust account or to be otherwise frozen pending property division. Our client does not have any intention of wasting or otherwise disposing of these funds and acknowledges that these funds form part of the matrimonial property pool.
11. Your client removed the following funds from the parties' joint accounts on 20 November 2023:
 - (a) \$3,920 from account ending #2594, and
 - (b) \$4,102 from account ending #5055.

Spousal maintenance

12. Our client is not aware that an agreement as to spousal maintenance has been reached by the parties.
13. Your client is capable of earning an income, however, has spent the marriage relying on our party's income in order to pursue his hobbies including bitcoin mining. As the marriage has now ended, our client is no longer willing to financially support your client to participate in his hobbies on a full-time basis.
14. Our client proposes that that your client obtain paid employment and, thereafter, an assessment can be made as to whether your client requires any additional financial assistance from our client. Would you please provide us with evidence of your client's



application for suitable paid employment positions as soon as possible so that our client may further consider the issue of spousal maintenance?

15. Our client is not agreeable to an interim property division for litigation funding. We understand that your client is likely to obtain finance through one of the legal financiers with which your firm is registered in order to pay his legal fees.

Financial disclosure

Our client is in the process of providing her financial disclosure documents to us which we shall forward to you as soon as they are to hand. Would you please provide us with your client's financial disclosure documents as soon as possible pursuant to the **attached** list?

We look forward to hearing from you as soon as possible and within seven (7) days.

Yours faithfully

Delaney Roberts Family Lawyers



Anna Roberts
Director, Solicitor & Family Dispute Resolution Practitioner
BComn LLB GradDipLegPrac
M.AppLaw (Family Law) GradDip (FDRP)

email: aroberts@delaneyroberts.com.au
phone: 02 4952 3901

Encl. 1



IN THE
No.

IN THE MATTER OF

Stephen Christopher Cooke
Applicant

and
Heather Anne Cooke
Respondent

ANNEXURE SHEET

This is the document referred to as Annexure C in the affidavit of
Stephen Christopher Cooke, affirmed at Merewether on 5 December
2023.

Before me:

DocuSigned by:

Prue Erin Garvin

282EEC688F2A48B

Prue Erin Garvin
Justice of the Peace 192672





IN THE
No.

IN THE MATTER OF

Stephen Christopher Cooke
Applicant

and
Heather Anne Cooke
Respondent

ANNEXURE SHEET

This is the document referred to as Annexure D in the affidavit of
Stephen Christopher Cooke, affirmed at Merewether on 5 December
2023.

Before me:

DocuSigned by:

Prue Erin Garvin

282EEC688F2A48B...

Prue Erin Garvin
Justice of the Peace 192672





IN THE
No.

IN THE MATTER OF

Stephen Christopher Cooke
Applicant

and
Heather Anne Cooke
Respondent

ANNEXURE SHEET

This is the document referred to as Annexure E in the affidavit of
Stephen Christopher Cooke, affirmed at Merewether on 5 December
2023.

Before me:

DocuSigned by:

Prue Erin Garvin

282EEC688F2A48B...

Prue Erin Garvin
Justice of the Peace 192672





Heather Cooke @



Wed, 8 Nov

Ive picked up a copy of the Cockatoo Island Excursion form from the office

9:13 am

If I can't use equity in the house for an investment property can I use equity in the house to buy into the business. I'm going to need a sizable personal loan

8:43 am

Heather Cooke

If I can't use equity in the house for an investment property can I use equity in the house to buy into the business. I'm going to need a sizable personal loan

Seriously cannot expect me to discuss this over a text message. We will have to make to time to discuss when the kids are not around, preferably when they are at school.

10:10 am

Not really it's pretty simple. Can I use the equity in the house to buy a proven and profitable business

The risks aren't the same a an investment property

10:33 am

As I have said above.

10:44 am



Signal message

